

Khateshwar Backward Multi-Business Educational Institution, Amravati operates 1) Dariyaji Shinde Residential Matimand Vidyalaya, Nandgaon Khandeswar, T. Nandgaon Khandeswar, J. Amravati, 2) Saraswatibai Residential Mukbadier Vidyalaya, Nandgaon Khandeswar, T. Nandgaon Khandeswar, J. Amravati and 3) Omzshanty Residential Matimand Vidyalaya, Sambodhi Colony, Rahatgaon Khandeswar, J. Amravati for the approval of three schools on a grant basis.

Maharashtra government

Department of Disability Welfare

Governance Decisions - EDD-2022/ Pro.

31,32,35 A, metal tower, A-wing, third floor,

Barrister Rajni Patel Road, Nariman Point, Mumbai 400 021

Date: 09th September, 2024.

वाचा :

1. Government Circular, Department of Social Justice, Cultural Affairs, Sports and Special Assistance

C.E.D.D.-2001/C.P.R.502/Reform-2, Dec. 19, 2003

2. Department of Governance Planning, Social Justice, Cultural Affairs, Sports and Fear Assistance

C.E.D.-2001/P.R.402/Reform-2, Dec. 04, 2003

3. Governance Decisions, Department of Social Justice No. EDD-2003/Pr.340/Part-2/Improvement-2

D. 18.08.2004 and D. 30.01.2006.

4. Governance Decisions Department of Social Justice and Special Assistance No. EDD-2012/Pr.67/A.K.1

दि.08.04.2015.

5. Governance Decree Department of Disability Welfare No. EDD-2022/Prc.65/D.K.1,

D. July 16, 2024.

6. High Court, bench in Nagpur on petition No. 3051/2019.

Order dated 06.09.2021.

7. Ma. High Court, bench in Nagpur in defamation petition No.167/2023

Orders dated 14th August 2024 and 29th August 2024.

The preamble is:

Kheteshwar Backward Classes Multi-Vocational Educational Institute, Amravati operated by 1) Dariyaji Shinde Residential Mattimand Vidyalaya, Nandgaon Khandeswar, T. Nandgaon Khandeswar, District of Amravati, 2

Saraswatibai Resident Mukabhedir Vidyalaya, Nandgaon Khandeswar, T. Nandgaon Khandeswar, District of Amravati

And 3rd is Omzhanti residential Matimand Vidyalaya, Spokes Colony, Rahatgaon, J. Amravati.

Schools accredited on a non-grant basis shall be granted accreditation on a grant basis and licensed under the scheme.

In the absence of a decision on approbation of employees, the head of the institution has appealed to the High Court, Bench.

RIT petition No. 3051/2019 was filed in Nagpur.

The order of the Court dated 06.09.2021 is as follows:

“9, We direct the State Government to examine the proposals of the petitioner society for sanctioning grants-in-aid to schools run by the petitioner society on the similar lines as the State Government has done while sanctioning the grants-in-aid under the Government Resolutions dated 8th April, 2015, 3rd July, 2019 and 17th September, 2019 and make them available the grants-in-aid, in accordance with law.

10. We further direct the State Government, by way of reiteration of the directions already issued by the coordinate Bench of this Court at Aurangabad on 2nd September, 2013 in Writ Petition No.10180/2012, to frame a policy for sanctioning grants-in-aid on permanent basis to the special schools run by different societies across State of Maharashtra within a period of six months from the date of the judgment. Rule accordingly.”

2. However, due to non-compliance with the above orders given by the Court, the relevant institution shall not be able to comply with the above orders.

The defamation petition No. 167/2023 has been filed in Nagpur High Court, Bench.

The Supreme Court during the hearing of the Sadhar Abhan Petition on 29.08.2024

The following orders have been passed.

“Mr. Vijay Waghmare, Secretary, Divyang Kalyan Vibhag, is personally present today through video conferencing and assures to take appropriate steps and report compliance with the directions contained in paragraph No.9 of the judgment dated 06.09.2021 by 09.09.2024.”

3. Non-subsidized in accordance with the order of the High Court dated 06.09.2021.

Cabinet Resolution on the establishment of a policy on grants to disabled initiatives

It was introduced at the meeting of the Cabinet on 5th July 2024.

Approved STS with Governing Decision issued on 16th July 2024

However, the Supreme Court ruled on 06/09.2021 and 08/29/2024.

According to the order, Kheteswar MMA, Amravati is an educational institution for the underprivileged.

It is organized by 1) Dariyaji Shinde Residential Mathimand Vidyalaya, Nandgaon Khandeswar, T. Nandgaon Khandeswar,

G. Amaravati, 2) Saraswatibai Residential Mukbadeer Vidyalaya, Nandgaon Khandeswar, T. Nandgaon

Khandeswar, G. Amaravati and 3) Omzshanthi Residential Mattimand Vidyalay, Swaldi Colony, Rahatgaon,

G. Amaravati Special Schools are considered by the Government for grant approval.

होती.

Decisions of the Government:-

Ma. High Court, Bench, Nagpur in writ petition No. 3051/2019 filed by Ma.

Order of the Court dated 06.09.2021 as well as Denial Petition No.167/2023 (Original Rite)

Pursuant to the order dated 29th August 2024, in Petition No. 3051/2019):

Listed in the table are the activities mentioned in No. 4 by Government Decree dated 08.04.2015.

Examination to be carried out in accordance with the prescribed criteria and subject to the following terms and conditions:

It is being approved on a subsidy basis.

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Governance Decree No: EDD-2022/ Pro.kr.41/D.K.1

Name of institution Name of activity Number of accepted students

Khateeshwar Retarded 9. Dariyaji Shinde Resident 50 Residents

Multicultural education. Schools, villages,

Amravati, Institute Amravati.J, Nandgaon and Khandeswar.

2) Saraswatibai Residential Mukbadeer 40 residential schools, Nandgaon Khandeswarr, Amravati.J, Nandgaon Khandeswar.Ta

3) Omzshanthi residential Matmand Vidyalaya, 50 residential, Rhatgaon, Spokes Colony Amaravati.

Terms and Conditions:-

1. Good schools shall be subject to the terms and conditions laid down by the Government from time to time.

The number of students accepted for the main activities will remain as indicated in front of the initiative.

It cannot be changed without government approval.

Sadarhu initiatives to be launched under the Department of Disability Welfare Dec. 16.07.2024

The terms and conditions set out in the Government decision will continue to apply.

Member institutions will be disqualified from receiving State Government grants if it is established that they are receiving regular grants from the Central Government, Local Self-Government Institutions or other bodies.

The accreditation of such institutions will be revoked if it is found that the terms and conditions and procedures established by the Government for granting grants are not complied with from time to time.

Kheteshwar Backward Classes Multi-Vocational Educational Institute, Amravati operated by 1) Dariyaji Shinde

Residential Mattimand Vidyalaya, Nandgaon Khandeswar, T. Nandgaon Khandeswar, District of Amravati, 2)

Saraswatibai Residential Mukabhedir Vidyalaya, Nandgaon Khandeswar, and Nandgaon Khandeswar,

G. Amaravati and 3) Omshanthi Residential Matimand Vidyalaya, Saparodhi Colony, Rahatgaon,

G. Amaravati initiatives are being approved on a grant basis.

Proposals for positions authorised under the Schedule dated 18.08.2004 Finance

Submit to the High-Level Committee for approval through the Department.

The nomination of members should not be made without the approval of the committee.

The MRA will continue to fulfill the terms and conditions set out in the Governance Decree issued by the Department of Disability Welfare under D.16.07.2024 to Sadarhu initiatives within six months, as well as the approval of the Department of Finance and the High-Level Secretary Committee on salary subsidy and appointment to Sadarhu schools.

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02.

The same initiatives have been approved by order of the High Court. This will no longer apply to the grant-based recognition of other handicapped exploitation activities and this case cannot be considered as a precedent.

The decision of the Supreme Court shall be made in accordance with the orders of the Supreme Court.

Issued in accordance with the approval given on 23.08.2024 by the Finance Department.

03.

The Government of Maharashtra has taken the decision on the website www.maharashtra.gov.in.

The computer code is 202409091419360135.

Seal is being certified with digital signature.

10)

By order and name of the Governor of Maharashtra.

Vv | 5H N U DAS ँ signed by VISHNUDAS PUNDLIKRAO.

DN: CN = VISHNUDAS PUNDLIKRAO GHODKE, C =

PUNDLIKRAO GHODKE 1, \$= Maharashtra, 0 = GOVERNMENT OF

MAHARASHTRA, OU = SOCIAL JUSTICE AND SPECIAL ASSISTANCE DEPT. Date: 2024.09.09 14:21:27 +05'30"

(V. P. Horke) Deputy Secretary, Government of Maharashtra

Private Secretary to the Chief Minister (S.N.A.)

Senior Self-Assistant to the Secretary, Ministry, Mumbai.

Ministry of Finance, Maharashtra State, Mumbai-32.

Commissioner, Disability Welfare, Maharashtra State, Pune.

Regional Affairs, Department of Social Welfare, Amravati.

District Social Welfare Officer, J.P. Amaravati.

Auditor General, Maharashtra 1/2 (Accounting and Licensing/Accounting Examination), Maharashtra State,
Mumbai/Nagpur.

District Treasurer, Amravati.

Chairman/Secretary, Kheteshwar Backward Classes Multi-Business Education Institute, Amravati.

Selection Nasti (Diyang Kalyan-1)

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